



File No.: EXP202212244

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the claimant), on September 19, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the CITY COUNCIL OF LOS LLANOS DE ARIDANE, with NIF P3802400F (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

On May 13, 2022, a Resolution was issued by the respondent, from the Mayor-President of the City Council of Los Llanos de Aridane, "approving the Public Employment Offer for the year 2022 (stabilization)," subsequently rectified in the announcement "of rectification of the Public Employment Offer for the year 2022 (stabilization)," published in the BOP, number 64, on May 30, 2022.

This resolution motivated the filing of a contentious-administrative appeal by the claimant on July 14, 2022.

The respondent, in compliance with Article 49 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, notified the resolution by which the referral of the file to the Court was agreed, to all those appearing as interested parties in it, summoning them to appear as defendants within a period of nine days.

The claimant considers that the aforementioned notification violates data protection regulations, as it revealed the identity of the person who filed the appeal. In this regard, it indicates that excessive data was included, as only the number of the Court and Procedure should have been provided.

Along with the complaint, a copy of the notification issued on September 12, 2022, by the respondent is attached, through which the letter from the Contentious-Administrative Court No. X of Santa Cruz de Tenerife is included, in which the referral of the administrative file for the approval of the stabilization plan of the City Council is ordered, along with the transfer of the claim.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month.

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of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP, on November 29, 2022, as stated in the certificate included in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail for informational purposes, which was duly notified on December 14, 2022. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on how to access such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

THIRD: On December 19, 2022, in accordance with Article 65 of the LOPDGDD, the admission of the claim presented by the claimant is communicated.

FOURTH: On January 12, 2023, a response letter from the respondent party was received in this Agency, in which it is stated that the City Council is aware of its deficiencies in data protection matters. However, it indicates that this is one of the main actions to be undertaken during the year 2023.

FIFTH: On June 16, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent party for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR. The initiation agreement provided that, as a result of the file, a possible declaration of infringement of the aforementioned provision of the GDPR could be made.

SIXTH: The aforementioned initiation agreement was duly notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), with the corresponding proof of access via electronic means on June 20, 2023. After the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent party.

Article 64.2.f) of the LPACAP - a provision of which the respondent party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent party has not submitted allegations to the initiation agreement of the file and in light of what is stated in the C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

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Established in Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered a proposal for resolution in the present case.

In light of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: On May 13, 2022, a resolution was issued by the responding party, the Mayor-President of the Town Hall of Los Llanos de Aridane, “approving the Public Employment Offer for the year 2022 (stabilization),” subsequently rectified in the announcement “of rectification of the Public Employment Offer for the year 2022 (stabilization),” published in the BOP, number 64, on May 30, 2022.

SECOND: This resolution prompted the claimant to file a contentious-administrative appeal on July 14, 2022.

THIRD: The responding party, in compliance with Article 49 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, notified the resolution agreeing to send the file to the Court to all those appearing as interested parties, summoning them to appear as defendants within a period of nine days.

FOURTH: In the notification mentioned in the previous fact, the responding party revealed to all interested parties the identity of the person who had filed the appeal, as well as the details regarding the full DNI number and address of the claimant.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

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Preliminary Issues

The Town Hall of Los Llanos de Aridane provides a series of public services, for which it processes personal data of its employees and citizens.

It carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR: “data controller” or “controller”: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.

Article 4, paragraph 2 of the GDPR defines “processing” as “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction.”

The transfer of the claim to all interested parties in the procedure, including the details of the claimant, is considered a processing of personal data, in accordance with the aforementioned provision of the General Data Protection Regulation.

For this processing to be compliant with data protection regulations, it must be based on one of the legitimizing bases set out in Article 6.1 GDPR.

These legitimizing bases are as follows:

- Consent.
- Performance of a contract to which the data subject is party or application at the request of the data subject of pre-contractual measures.
- Compliance with a legal obligation to which the data controller is subject.
- Protection of vital interests of the data subject or of another natural person.
- Performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.
- Pursuit of legitimate interests pursued by the data controller or by a third party.

In the context of Local Administration, the legal basis that legitimizes processing is generally the performance of a task in the public interest or the exercise of public powers, as well as compliance with a legal obligation.

In both cases, there must be a regulatory provision with the rank of law that justifies the processing of the data.

Article 49 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction establishes in its section 1:

“1. The resolution agreeing to send the file shall be notified within five days following its adoption to all those appearing as interested parties, summoning them to appear as defendants within a period of nine days. The notification shall be carried out in accordance with the provisions of the law regulating the common administrative procedure.

In appeals against decisions adopted by the administrative bodies responsible for resolving special appeals and claims in matters of contracting referred to in the Public Sector Contracts legislation, those persons, other than the appellant, who have appeared in the administrative appeal shall be

summoned as defendants, so that they may appear as defendants within a period of nine days.”
For its part, in accordance with Article 4.1 of the LPACAP, the following are considered interested parties in the administrative procedure:

- “a) Those who promote it as holders of individual or collective legitimate rights or interests.
- b) Those who, without having initiated the procedure, have rights that may be affected by the decision made therein.
- c) Those whose legitimate individual or collective interests may be affected by the resolution and who appear in the procedure as long as there is no final resolution.”

It must be analyzed whether, even being an interested party, the individuals summoned in the contentious-administrative procedure need to know the full ID number and address of the claimant to assert their rights. That said, it is important that the delivery of information complies with the principles set out in the GDPR regarding the processing of personal data. Specifically, the following can be highlighted:

- Principle of data minimization: Personal data shall be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.

III

Unfulfilled obligation. Data minimization.

The GDPR establishes in Article 5 the principles relating to the processing of personal data that must be considered:

“Personal data shall be:

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(...)

- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’)

This article enshrines the principle of data minimization in the processing of personal data.

In the specific case being examined, compliance with the principle of minimization would require identifying the specific data that must be communicated according to the purpose, as well as limiting it to what is strictly necessary for its proper communication. Therefore, in relation to the minimization and necessity of the processing, there are less harmful alternatives for the protection of the data of the claiming party. The delivery of the claim should have been carried out in compliance with the principles set out in the GDPR, specifically, the principle of data minimization, not providing more personal information than is strictly necessary.

That is to say, for the City Council to comply with the obligation it has to summon the interested parties in the contentious procedure, it was not necessary for them to know the full ID number and address of the claimant.

Therefore, by virtue of the principle of minimization, it is considered that access by the interested parties in the procedure to the full ID number and address of the claimant as stated in the copy of the claim is contrary to this principle, given that they do not need to know that information, making the claim of the claiming party plausible. In other words, unless the knowledge by the interested parties in the procedure of such data is necessary to assert their rights, its delivery is considered disproportionate, violating the indicated principle, and the full ID number and address of the claimant in the claim should have been anonymized.

In accordance with the evidence available in this sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the summoned party, for violation of Article 5.1 c) of the GDPR, classified in Article 83.5.a) of the same legal text.

IV

Classification of the infringement of Article 5.1 c) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.c) of the GDPR could imply the

commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

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In this regard, the LOPDGDD, in its article 71 “Infringements” establishes that

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, article 72 “Infringements considered very serious” of the LOPDGDD indicates:

“1. Based on what is established in article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following: a) The processing of personal data in violation of the principles and guarantees established in article 5 of Regulation (EU) 2016/679. (...)”

V

Proposal for sanction

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or which they process:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, with the exception of that provided for in article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

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The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority

shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for the processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Bulletin or the corresponding autonomous bulletin.

4. The resolutions related to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”

In the present case, it is deemed appropriate to declare the infringement of the claimed party, for infringement of article 5.1.c) of the GDPR, by carrying out excessive processing of personal data, having failed to proceed with the anonymization of the full ID number and the address of the claimant that appear in the complaint.

VI

Imposition of measures

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may motivate such conduct to open a further sanctioning administrative procedure.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that AYUNTAMIENTO DE LOS LLANOS DE ARIDANE, with NIF P3802400F, has infringed the provisions of Article 5.1.c) of the GDPR, an infringement classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to AYUNTAMIENTO DE LOS LLANOS DE ARIDANE.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

FOURTH: TO ORDER AYUNTAMIENTO DE LOS LLANOS DE ARIDANE, with NIF P3802400F, to, pursuant to Article 58.2.d) of the GDPR, within a period of THREE MONTHS, demonstrate that it has taken the necessary measures for full compliance, in cases such as that adjudicated in this resolution, with the provisions contained in the GDPR and the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National

Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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